

Line 4

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

CITIBANK, N.A.,

Plaintiffs,

v.

JESUS ANGEL DIAZ SALAZAR,

Defendant.

Case No. 24CV4366415

**ORDER GRANTING MOTION FOR
JUDGMENT ON THE PLEADINGS**

CitiBank, N.A.'s motion for judgment on the pleadings came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

CitiBank, N.A.'s motion for judgment on the pleadings is GRANTED. A notice of motion with this hearing date and time was served on Defendant by U.S. mail on December 17, 2024. Defendant did not oppose the motion. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant this motion.

Plaintiff filed its complaint on April 23, 2024 seeking \$7,390.58 in unpaid credit card debt. Defendant answered on June 21, 2024 denying all allegations and asserting various affirmative defenses. Plaintiff served requests for admission on Defendant by U.S. mail on July 10, 2024, and, after Defendant failed to respond, obtained an order deeming the matters in those requests

1 admitted. The matters admitted constitute judicial admissions which the Court can consider on a
2 motion for judgment on the pleadings and demonstrate as a matter of law each element of Plaintiff's
3 claims. (*Pang v. Beverly Hsp., Inc.* (2000) 79 Cal.App.4th 986, 989; *Barsegian v. Kessler & Kessler*
4 (2013) 215 Cal.App.4th 446, 451.)

5 Accordingly, Plaintiff's motion for judgment on the pleadings is GRANTED. Plaintiff is
6 ordered to prepare and file a form of judgment for the Court's review within 10 calendar days of
7 service of this formal order.

8 **IT IS SO ORDERED.**

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10 Date: _____

11 Hon. Evette D. Pennypacker
12 Santa Clara Superior Court Judge
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Line 5

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BART ZIEGENHAGEN, KENYA ZIEGENHAGEN,

Plaintiffs,

v.

MARIE A. HITCHCOCK, Trustee of John C.
Hitchcock Family Trust; and DOES 1-10,
inclusive

Defendants.

Case No. 23CV409783

**ORDER DENYING MOTION TO
COMPEL**

Plaintiff's motion to compel responses to special interrogatories came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

I. Alleged Facts

According to the Complaint, Plaintiffs have been residential tenants at 115 Roosevelt Avenue, San Martin, California 95046 (the "Premises") under a written lease since February 29, 2016. (Complaint, ¶ 1.) Hitchcock is the Trustee of the John C. Hitchcock Family Trust (the "Trust"). (*Id.*) The Trust represented to Plaintiffs that the Premises would be ready for occupancy by the commencement date of the lease. (Complaint, ¶ 4.) Based on those representations, Plaintiffs decided to rent the Premises and made plans to move in. (Complaint, ¶ 5.) The Premises were not